# IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - II, CHENNAI

## CA(CAA)/16(CHE)2023

(filed under Sections 230 to 232 of the Companies Act, 2013)

In the matter of *Composite Scheme of Amalgamation*
*Between*

**RSJK PROJECT CONSULTANCY PRIVATE LIMITED**
CIN No- U74140TN1993PTC025576
*Reg Off:-*
19, Marshalls Road, III Floor,
Raja Annamalai Buildings, Egmore,
Chennai - 600 008 … *Applicant/Transferor Company-1*

*And*

**TALON (INDIA) PRIVATE LIMITED**
CIN No- U27209TN1983PTC010067
*Reg Off:-*
No. 44, Kasthuri Ranga Road,
Alwarpet, Chennai – 600 018 … *Applicant/Transferor Company-2*

*And*

**OAKLEY BOWDEN & COUNSEL (MADRAS) PRIVATE LIMITED**
CIN No- U74999TN1930PTC001939
*Reg Off:-*
Old No. 38 (New No. 46), Kasthuri Ranga Road,
Alwarpet, Chennai – 600 018 … *Applicant/Transferee Company*

*And*

**THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS**

*Order Pronounced on* ***21st June 2023***

*CORAM*

**SANJIV JAIN, MEMBER (JUDICIAL)**
**SAMEER KAKAR, MEMBER (TECHNICAL)**

*For Applicants : C. Prabhakar, PCS*

*ORDER*

*Per:* **SAMEER KAKAR, MEMBER (TECHNICAL)**

Under consideration is a joint application filed by the Applicant Companies, namely *RSJK Project Consultancy Private Limited* (for brevity

"Transferor Company-1"), *Talon (India) Private Limited* (for brevity "Transferor Company-2") *Oakley Bowden & Counsel (Madras) Private Limited* (for brevity "Transferee Company"), under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Composite Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies as accorded in their respective board resolutions dated 12.01.2023. The said Scheme is appended as Annexure –19 to the Application. Accordingly, the Applicant Companies herein have sought the following reliefs;

| | EQUITY SHAREHOLDERS | SECURED CREDITORS | UNSECURED LOAN CREDITORS | UNSECURED TRADE CREDITORS |
|---|---|---|---|---|
| TRANSFEROR COMPANY - 1 | *To dispense with* | *NA** | *NA** | *NA** |
| TRANSFEROR COMPANY-2 | *To dispense with* | *NA** | *To dispense with* | *To dispense with* |
| TRANSFEREE COMPANY | *To dispense with* | *NA** | *To dispense with* | *To dispense with* |

2. The Affidavits verifying the Application is sworn for and on behalf of the applicant Companies individually is as follows,

- Mr. Sushil Kumar Yadav, in the capacity of the Authorised Signatory of the Transferor Company- 1
- Mr. Purshotam Das Sewag, in the capacity of the Authorised Signatory of Transferor Company-2 and Transferee Company.

It is represented that the registered offices, of the Applicant Companies are situated within the jurisdiction of Registrar of Companies, Chennai, Tamil Nadu.

3. **RSJK PROJECT CONSULTANCY PRIVATE LIMITED**

a. There are **3 (three)** Equity Shareholder. List to this effect is placed at page 281 of Volume -II of the typed set filed. The consent affidavits obtained from all the shareholders are between Pages 282-290 of Volume -II of the typed set filed along with the application and seeks dispensation with holding of meeting.

b. There is **NIL** Secured Creditor. The certificate issued by the Chartered Accountant to this effect is placed at page 291 of Volume -II of the typed set filed along with the application and seeks dispensation with holding of meeting.

c. There is **NIL** Unsecured Loan Creditor. The certificate issued by the Chartered Accountant to this effect is placed at page 292 Volume -II of the typed set filed along with the application and seeks dispensation with holding of meeting.

d. There is **NIL** Unsecured Trade Creditor. The certificate issued by the Chartered Accountant to this effect is placed at page 293 Volume -II of the typed set filed along with the application and seeks dispensation with holding of meeting.

4. **TALON (INDIA) PRIVATE LIMITED**

a. There are **5 (five)** Equity Shareholders. The List to this effect is placed at page 294 of Volume -II of the typed set filed. The consent affidavits for the same is placed between Pages 295-312 of Volume -II of the typed set filed along with the application and seeks dispensation with holding of meeting.

b. There is **NIL** Secured Creditor. The certificate issued by the Chartered Accountant to this effect is placed at page 313 of

Volume -II of the typed set filed along with the application and seeks dispensation with holding of meeting.

c. There are **2 (two)** Unsecured Loan Creditors. The certificate issued by the Chartered Accountant along with the list to this effect is placed at page 314 and the consent affidavits for the same is placed between Pages 315-326 of the typed set filed along with the application and seeks dispensation with holding of meeting.

d. There is **1 (one)** Unsecured Trade Creditor. The certificate issued by the Chartered Accountant to this effect is placed at page 327 Volume -II of the typed set and the consent affidavit obtained is placed between Pages 328-330 of Volume -II of the typed set filed along with the application and seeks dispensation with holding of meeting.

5. **OAKLEY BOWDEN & COUNSEL (MADRAS) PRIVATE LIMITED**

a. There are **5 (five)** Equity Shareholders. The List to this effect is placed at page 331 of Volume -II of the typed set filed and the consent affidavits for the same is placed between Pages 332- 349 of the typed set filed along with the application and seeks dispensation with holding of meeting.

b. There is **NIL** Secured Creditor. The certificate issued by the Chartered Accountant to this effect is placed at page 350 of Volume -II of the typed set filed along with the application and seeks dispensation with holding of meeting.

c. There are **3 (three)** Unsecured Loan Creditors. The certificate issued by the Chartered Accountant along with the list to this effect is placed at page 351 and the consent affidavits for the same is placed between Pages 352-367 of the typed set filed

along with the application and seeks dispensation with holding of meeting.

d. There is **1 (one)** Unsecured Trade Creditor. The certificate issued by the Chartered Accountant to this effect is placed at page 368 Volume -II of the typed set. The consent affidavit obtained is placed between Pages 369-374 of Volume -II of the typed set filed along with the application and seeks dispensation with holding of meeting.

6. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

7. From the certificate of incorporation filed, it is evident that the Transferor Company-1 is a Private limited company incorporated under the provisions of Companies Act, 2013 on 10.08.1993 with CIN No - U74140TN1993PTC025576. The Registered office of the company is situated at 19, Marshalls Road, III Floor, Raja Annamalai Buildings, Egmore, Chennai - 600 008. The Authorized, issued, subscribed and Paid-up share capital of the Transferee/Resulting Company as on 30.11.2022 are as extracted hereunder:

| Authorised Share Capital | Amount (Rs.) |
|---|---|
| 2,50,000 Equity Shares of Rs.10/- each | 25,00,000 |
| **Issued, Subscribed and Paid-up Share Capital** | **Amount (Rs.)** |
| 1,60,100 Equity Shares of Rs.10/- each | 16,01,000 |

Subsequent to November 30, 2022 and till the date of filing of this application before the Hon'ble Tribunal, there has been no change in the share capital of the Applicant/First Transferor Company.

8. From the certificate of incorporation filed, it is evident that the Transferor Company-2 is a Private limited company incorporated under the provisions of Companies Act, 1956 on 01.06.1983. The Registered office of the company is situated at No. 44, Kasthuri Ranga Road, Alwarpet, Chennai – 600 018. The Authorized, issued, subscribed and Paid-up share capital of the Demerged Company as on 30.11.2022 are as extracted hereunder:

| Authorised Share Capital | Amount (Rs.) |
|---|---|
| 2,50,000 Equity Shares of Rs.100/- each | 25,00,000 |
| **Issued, Subscribed and Paid-up Share Capital** | **Amount (Rs.)** |
| 35,410 Equity Shares of Rs.100/- each | 3,54,100 |

Subsequent to November 30, 2022 and till the date of filing of this application before the Hon'ble Tribunal, there has been no change in the share capital of the Applicant/Second Transferor Company.

9. From the certificate of incorporation filed, it is evident that the Transferee Company is a Private limited company incorporated under the provisions of Companies Act, 1956 on 26.08.1930. The Registered office of the company is situated at Old No. 38 (New No. 46), Kasthuri Ranga Road, Alwarpet, Chennai – 600 018. The Authorized, issued, subscribed and Paid-up share capital of the Demerged Company as on 30.11.2022 are as extracted hereunder:

| Authorised Share Capital | Amount (Rs.) |
|---|---|
| 3,50,000 Equity Shares of Rs.10/- each | 35,00,000 |
| **Issued, Subscribed and Paid-up Share Capital** | **Amount (Rs.)** |
| 2,51,350 Equity Shares of Rs.10/- each | 25,13,500 |

Subsequent to November 30, 2022 and till the date of filing of this application before the Hon'ble Tribunal, there has been no change in the share capital of the Applicant/Transferee Company.

10. The Applicant Companies have filed its Memoranda and Articles of Association *inter alia* delineating their object clauses as well as their last available Audited Annual Accounts for the year ended 31.03.2022 and provisional Financial Statements as on 30.11.2022.

11. The Boards of Directors of all the applicant Companies vide their meeting held on 12th January 2023 have unanimously approved the proposed Scheme as contemplated above. The copies of resolutions passed thereon have been placed on record by the applicant companies.

12. The Appointed date as specified in the Scheme is 01.04.2022.

13. The Statutory Auditors of the Applicant Companies have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificates of the Statutory Auditors issued in this regard for both the Companies are filed vide Sr. no. 2082/22.05.2023, the same is taken on record.

14. Upon consideration of the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal issues the following directions: -

**A. IN RELATION TO THE TRANSFEROR COMPANY-1:**

(i) **With respect to Equity shareholders:**

Since, it is represented by the Transferor Company-1 that there are **3** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to Secured Creditors:**

Since, it is represented by the Transferor Company-1 that there is **NIL** Secured Creditor in the Company, the necessity of convening a meeting does not arise.

(iii) **With respect to Unsecured Loan Creditors:**

Since, it is represented by the Transferor Company-1 that there is **NIL** Unsecured Loan Creditor in the Company, the necessity of convening a meeting does not arise.

(iv) **With respect to Unsecured Trade Creditors:**

Since, it is represented by the Transferor Company-1 that there is **NIL** Unsecured Trade Creditor in the Company, the necessity of convening a meeting does not arise.

**B. IN RELATION TO THE TRANSFEROR COMPANY-2:**

(i) **With respect to Equity shareholders:**

Since, it is represented by the Transferor Company-2 that there are **5** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to Secured Creditors:**

Since, it is represented by the Transferor Company-2 that there is **NIL** Secured Creditor in the Company, the necessity of convening a meeting does not arise.

(iii) **With respect to Unsecured Loan Creditors:**

Since, it is represented by the Transferor Company-2 that there are **2** Unsecured Loan Creditors in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(iv) **With respect to Unsecured Trade Creditors:**

Since, it is represented by the Transferor Company-2 that there is **1** Unsecured Trade Creditor in the Company whose consents by way of Affidavit has been obtained and is placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

C. **IN RELATION TO THE TRANSFEREE COMPANY:**

(i) **With respect to Equity shareholders:**

Since, it is represented by the Transferee Company that there are **5** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(ii) **With respect to Secured Creditors:**

Since, it is represented by the Transferee Company that there is **NIL** Secured Creditor in the Company, the necessity of convening a meeting does not arise.

(iii) **With respect to Unsecured Loan Creditors:**

Since, it is represented by the Transferee Company that there are **3** Unsecured Loan Creditors in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

(iv) **With respect to Unsecured Trade Creditors:**

Since, it is represented by the Transferee Company that there is **1** Unsecured Trade Creditor in the Company whose consents by way of Affidavit has been obtained and is placed on record, the necessity of convening and holding the meeting is ***dispensed with.***

15. Accordingly, the Application stands **Allowed** and is disposed of. The Applicant Companies shall submit the Company Petition(s) within 14 days from the date of receipt of this order.

- Sd -

**SAMEER KAKAR**
MEMBER (TECHNICAL)

- Sd -

**SANJIV JAIN**
MEMBER (JUDICIAL)